



Friends Meeting House (Reigate) Act 1980

CHAPTER xxi

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ELIZABETH II



1980 CHAPTER xxi

An Act to provide for the demolition of the Reigate Meeting House of The Religious Society of Friends; to authorise the disposal of the site thereof together with all land and appurtenances held and enjoyed therewith including the site of a disused burial ground; to use for other purposes the said site, lands, appurtenances and burial ground; and for purposes connected therewith.

[17th July 1980]

WHEREAS—

(1) By a lease (hereinafter called “the original lease”) dated 2nd January 1668 the land therein comprised (hereinafter called “the demised land”) was demised to the trustees therein named for a term of two thousand years from the 2nd day of December 1668 upon trust to be freely used and employed for a burying place for the people called Quakers and also for the burial of any others to whom any two or three of the said trustees should think fit to permit to be buried there and also for such other uses as the trustees or any of them should think fit and convenient:

(2) By a conveyance dated 8th August 1887 the land therein comprised was conveyed to the then trustees of the charity created by the original lease to be held by them in trust as a burial ground for the use and accommodation of The Religious Society of Friends and that land together with the demised land are hereinafter and by virtue of section 2 (Interpretation) of this Act, collectively referred to as “the scheduled property”:

(3) Part of the scheduled property has been used or set apart as a burial ground for the interment of human remains but, of

that part, a portion (hereinafter called "the disused burial ground") is no longer used as such and there have been no burials in the disused burial ground since the year 1908 and the headstones were removed from the graves therein and re-erected against one of the boundary walls thereof in or about the year 1946:

(4) The Reigate Meeting House of The Religious Society of Friends (hereinafter called "the meeting house") was erected in or about the year 1860 on a further part of the scheduled property but the meeting house is no longer suitable or convenient for its present purpose and the needs of The Dorking and Horsham Monthly Meeting of The Religious Society of Friends could be better met by the demolition of the meeting house and by the provision of a new meeting house erected on part of the scheduled property:

(5) There is a deficiency of adequate residential accommodation for elderly persons within the borough and its environs and that deficiency may, in part, be supplied as hereinafter provided:

(6) It is expedient that the meeting house should be demolished and that the site thereof together with the site of the disused burial ground (both of which sites are shown coloured pink on the signed plan and are hereinafter referred to as "the pink land") should be used for the erection of a new meeting house and buildings to accommodate elderly persons and that the managing trustees should be empowered to dispose of the pink land or any part thereof and that the disused burial ground should be freed from all restrictions which may affect the same by reason of its having been used or set apart for the interment of human remains:

(7) It is expedient that the remainder of the scheduled property, that is to say the part thereof shown coloured blue on the signed plan (hereinafter called "the existing burial ground") which contains sufficient space to meet the estimated requirements of The Dorking and Horsham Monthly Meeting of The Religious Society of Friends for the next two hundred years, should continue as hitherto to be used or set apart as a burial ground for the interment of human remains:

(8) The scheduled property forms the endowment of the charity known as The Reigate Meeting House and Burial Ground and by a scheme established by order made by the Charity Commission for England and Wales under the Charities Act 1960 on the 9th June 1964 Friends Trusts Limited, a company incorporated under the Companies Acts 1908 to 1917 and the Companies Act 1948, was appointed the custodian trustee of the said charity and the scheduled property was (together with other land) vested in the said company as custodian trustee for all the estate and interest therein belonging to or held for the said charity:

1960 c. 58.

1948 c. 38.

(9) A body of managing trustees of the said charity (hereafter called "the managing trustees") was constituted by the said scheme and consists of seven competent persons each being a member of the Sussex Surrey and Hants Quarterly Meeting of the Religious Society of Friends and appointed from time to time for a term of five years by The Dorking and Horsham Monthly Meeting of The Religious Society of Friends:

(10) By a deed of enlargement made on 27th June 1977 by the Friends Trusts Limited under section 153 of the Law of Property Act 1925 the said term of two thousand years created by the 1925 c. 20. original lease was enlarged into a fee simple:

(11) The managing trustees are desirous of granting a lease of the whole or part of the pink land to the Reigate Quaker Housing Association Limited, a charity registered under the Charities Act 1960 and a society registered under the Industrial and Provident Societies Act 1965 and having for one of its objects the provision of housing for aged persons in need thereof together with the provision of associated amenities specially designed or adapted to meet the disabilities and requirements of such persons, and the said association are desirous of accepting the lease and of erecting, pursuant to that lease, on that part of the scheduled property a building for the accommodation of elderly persons with associated amenities specially designed for the needs of those persons:

(12) It is expedient that such provisions as are contained in this Act with respect to the disposal and development of the pink land and the removal of any human remains which are interred in any part thereof and which may be disturbed by that development should be enacted:

(13) It is expedient that the other provisions contained in this Act should be enacted:

(14) The objects of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. This Act may be cited as the Friends Meeting House (Reigate) Act 1980.

2. In this Act and in the Preamble to this Act, unless the context otherwise requires—

“the Association” means the Reigate Quaker Housing Association Limited;

- “ the borough ” means the borough of Reigate and Banstead in the county of Surrey;
- “ the disused burial ground ” means the land which is described as such in paragraph (3) of the Preamble to this Act and which is shown coloured pink and hatched black on the signed plan;
- “ the existing burial ground ” means the land which is described as such in paragraph (7) of the Preamble to this Act and which is shown coloured blue on the signed plan;
- “ the lessees ” means the Association or other persons to whom the scheduled property, or any part thereof, is for the time being leased;
- “ the managing trustees ” has the meaning assigned to that expression by paragraph (9) of the Preamble to this Act;
- “ the meeting house ” has the meaning assigned to that expression by paragraph (4) of the Preamble to this Act;
- “ the pink land ” means the land (including the disused burial ground) which is described as such in paragraph (6) of the Preamble to this Act and which is shown coloured pink on the signed plan;
- “ the scheduled property ” means the pink land and the existing burial ground which are together described in the Schedule to this Act;
- “ the signed plan ” means the plan signed in triplicate by the Lord Aberdare, the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred, one copy of which was deposited at each of the following offices, that is to say:—
- (a) the office of the Clerk of the Parliaments;
 - (b) the Private Bill Office, House of Commons; and
 - (c) the registered office of the Trust situated at Friends House, Euston Road, London NW1 2BJ;
- “ the Trust ” means the Friends Trusts Limited.

**Demolition
of meeting
house.**

3. The Trust and the managing trustees may cause or permit the meeting house, or any part thereof, to be demolished and the materials thereof to be sold or otherwise disposed of as the Trust and the managing trustees may think fit.

**Power to sell
part of
scheduled
property and
application of
proceeds.**

4.—(1) The Trust and the managing trustees may sell, lease or otherwise dispose of the pink land or any part thereof, for such price or consideration, in such manner and upon and subject to such terms and conditions as the Trust and the managing trustees may think fit.

(2) The proceeds of any sale or other disposition effected under the powers conferred by this section shall be applied first in the payment of any costs, charges and expenses incurred by the Trust and the managing trustees in connection with any sale, lease or other disposition as aforesaid and thereafter for the charitable purposes of The Religious Society of Friends in Reigate and elsewhere.

5.—(1) Subject to subsection (2) of this section, as from the passing of this Act the pink land shall be freed and discharged from all trusts, uses, obligations, disabilities and restrictions relating or appertaining to the use or setting apart of the pink land or any part thereof as a place for the interment of human remains which immediately before the passing thereof attached thereto, and from all rights and interests of any person who is an executor, administrator or relative of any deceased person whose remains are interred in the disused burial ground; and the provisions of the Disused Burial Grounds Act 1884 shall cease to apply to the pink land.

Discharge of trusts, etc., and saving for private rights.

1884 c. 72.

(2) Nothing in this Act shall operate to affect prejudicially any private right or easement (not being a right in respect of a grave) over the pink land, or any part thereof, which attached thereto immediately before the passing of this Act.

6. None of the provisions of this Act shall apply to the existing burial ground.

Existing burial ground.

7.—(1) (a) Before the lessees carry out any work on any part of the disused burial ground which does not necessitate the disturbance of the remains of any deceased person but which will render inaccessible the grave of any deceased person interred in such part, they shall, in accordance with the provisions of this section, give notice that the grave will become inaccessible by publishing a notice in manner provided in paragraph (b) of this subsection in at least two newspapers circulating in the borough and shall display a like notice outside the principal entrance to the scheduled property.

Inaccessible graves.

(b) The notice referred to in paragraph (a) of this subsection shall have embodied in it the substance of subsections (2) to (5) of this section and shall be published in each of four successive weeks by publication in at least one newspaper in the first and third of those weeks and in at least one other newspaper in the second and fourth of those weeks.

(2) At any time within three months after the first publication of such notice, any person who is a personal representative or relative of any deceased person whose remains are interred in such grave may give notice in writing to the lessees of his intention to undertake the removal of such remains and thereupon he shall be at liberty, but subject as hereinafter mentioned, to cause such

remains to be removed to and reinterred in any burial ground or cemetery in which interments may legally take place or to be removed to and cremated in any crematorium.

(3) If any person giving such notice as aforesaid fails to satisfy the lessees that he is such personal representative or relative as he claims to be, the question shall be determined on the application of either party by the county court and the court shall have power to make an order empowering that person to remove and reinter or cremate the remains.

(4) The lessees shall defray the expenses of the removal and reinterment or cremation of such remains, not exceeding such sum as may be reasonable in the circumstances.

(5) If—

- (a) within the aforesaid period of three months no such notice as aforesaid shall have been given to the lessees in respect of the remains in any grave; or
- (b) within two months after such notice has been given, no application has been made under subsection (3) of this section and the person giving the notice fails to remove the remains; or
- (c) within two months after any order is made by the county court under that subsection, the person (not being the lessees) empowered by the order to remove the remains fails to do so; or
- (d) it is determined that the remains to which any such notice relates cannot be identified;

the lessees may proceed with any work that will render such grave inaccessible.

(6) The removal of the remains of any deceased person under this section shall be carried out in accordance with any direction that may be given by the Secretary of State.

(7) The lessees shall cause a record to be made of every grave rendered inaccessible by them containing a copy of any legible inscription on any headstone which stands on any part of the disused burial ground and which relates to the remains of any deceased person in any such grave and shall deposit a copy of the record with the Registrar General.

Removal of
human
remains.

8.—(1) Before the lessees carry out any work on any part of the disused burial ground which necessitates the disturbance of the remains of any deceased person interred therein, the lessees shall in accordance with the provisions of this section, remove or cause to be removed therefrom the remains of all deceased persons interred in that part.

(2) Before proceeding to remove any such remains, the lessees shall give notice of their intention so to do by publishing a notice in the manner provided in subsection (3) of this section in at least two newspapers circulating in the borough and shall display a like notice outside the principal entrance to the scheduled property.

(3) The notice referred to in subsection (2) of this section shall have embodied in it the substance of subsections (4) to (7) and (9) of this section and shall be published in each of four successive weeks by publication in at least one newspaper in the first and third of those weeks and in at least one other newspaper in the second and fourth of those weeks.

(4) At any time within three months after the first publication of such notice, any person who is a personal representative or relative of any deceased person whose remains are interred in the disused burial ground may give notice in writing to the lessees of his intention to undertake the removal of such remains and thereupon he shall be at liberty, but subject as hereinafter mentioned, to cause such remains to be removed to and reinterred in any burial ground or cemetery in which interments may legally take place or to be removed to and cremated in any crematorium.

(5) If any person giving such notice as aforesaid fails to satisfy the lessees that he is such personal representative or relative as he claims to be, the question shall be determined on the application of either party by the county court and the court shall have power to make an order empowering that person to remove and reinter or cremate the remains.

(6) The lessees shall defray the expenses of the removal and reinterment or cremation of such remains not exceeding such sum as may be reasonable in the circumstances.

(7) If—

(a) within the aforesaid period of three months no such notice as aforesaid shall have been given to the lessees in respect of the remains in any grave; or

(b) within two months after such notice has been given, no application has been made under subsection (5) of this section and the person giving the notice fails to remove the remains; or

(c) within two months after any order is made by the county court under that subsection, the person (not being the lessees) empowered by the order to remove the remains fails to do so; or

(d) it is determined that the remains to which any such notice relates cannot be identified;

the lessees may cause the remains of the deceased person to be removed and reinterred in such burial ground or cemetery in which interments may legally take place as the lessees think suitable for the purpose, or removed to and cremated in any crematorium:

Provided that if any personal representative or relative has given notice under subsection (4) of this section and has satisfied the lessees that he is such personal representative or relative as he claims to be and that the remains can be identified but does not remove the remains, the lessees shall comply with any reasonable request he may make in relation to the removal and reinterment or cremation of the remains.

(8) Upon the reinterment or cremation of any remains under this section, a certificate of reinterment or cremation shall be sent to the Registrar General by the lessees giving the date of reinterment or cremation and identifying the place from which the remains were removed and the place in which they were reinterred or cremated.

(9) (a) Subject to the provisions of this subsection, any headstone relating to the remains of any deceased person removed and reinterred under this section shall at the expense of the lessees be removed and re-erected at the place of reinterment of such remains or at such other suitable place as may be agreed between such personal representative or relative as aforesaid and the lessees or (in default of such agreement) the county court may direct on the application of such personal representative or relative or of the lessees.

(b) Subject to the provisions of this subsection any headstone relating to the remains of any deceased person removed and cremated under this section shall at the request of such personal representative or relative as aforesaid or, if no such request is made, may at the discretion, and in either case at the expense, of the lessees be removed and re-erected at such other suitable place as—

- (i) where such a request has been made, may be agreed between such personal representative or relative as aforesaid and the lessees or (in default of such agreement) the county court may direct on the application of such personal representative or relative or of the lessees;
- (ii) where no such request has been made, the lessees may determine.

(c) At any time within the period of three months specified in subsection (4) of this section any such personal representative or relative as aforesaid may give notice in writing to the lessees of his

intention to undertake the removal of any headstone relating to the remains of any deceased person removed and cremated under this section and, thereupon, he shall be at liberty to remove that headstone from the disused burial ground and the reasonable expenses of such removal shall be paid by the lessees.

(d) Where the lessees consider that by reason of its ruinous condition any headstone removed under this subsection is unsuitable for re-erection, it may be disposed of in such manner as the lessees think fit:

Provided that, where a personal representative or relative has made an application or a request, as the case may be, as to the place of re-erection of a headstone in accordance with paragraph (a) or (b) of this subsection, the lessees shall not dispose of the headstone in pursuance of the powers in this paragraph without first obtaining the consent in writing of that personal representative or relative.

(e) The lessees shall cause a record to be made of each headstone removed under this subsection containing—

- (i) a copy of any legible inscription thereon; and
- (ii) a statement of the place, if any, where it has been re-erected;

and shall deposit a copy of the record with the Registrar General.

(10) The removal of the remains of any deceased person under this section shall be carried out in accordance with any directions that may be given by the Secretary of State.

9. Where a county court makes an order pursuant to an Court orders. application made under section 7 (Inaccessible graves) or section 8 (Removal of human remains) of this Act, the court may also make an order as to the costs of the application.

10. All costs, charges and expenses of and incidental to the Costs of Act. preparing for, obtaining and passing of this Act, or otherwise in relation thereto, shall, in the first instance, be paid by the Association.

Section 2.

SCHEDULE

DESCRIPTION OF THE SCHEDULED PROPERTY

All that piece of land in the borough of Reigate and Banstead in the county of Surrey having a frontage to Reigate Road and comprising the Reigate Meeting House of the Society of Friends and the lands and burial ground appurtenant thereto:



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